

House File 802

H-1131

1 Amend House File 802 as follows:

2 1. By striking everything after the enacting clause and
3 inserting:

4 <Section 1. Section 144E.2, Code 2025, is amended to read
5 as follows:

6 **144E.2 Definitions.**

7 As used in [this chapter](#):

8 1. "Eligible facility" means an institution operating under
9 a federalwide assurance for the protection of human subjects
10 pursuant to 42 U.S.C. §289(a) and 45 C.F.R. pt. 46, and
11 subject to the federalwide assurance laws, rules, policies, and
12 guidelines including renewals and updates.

13 ~~1.~~ 2. "Eligible patient" means an individual who meets all
14 of the following conditions specified under paragraph "a" or
15 "b":

16 a. (1) Has a terminal illness, attested to by the patient's
17 treating physician.

18 ~~b.~~ (2) Has considered and rejected or has tried and failed
19 to respond to all other treatment options approved by the
20 United States food and drug administration.

21 ~~c.~~ (3) Has received a recommendation from the individual's
22 physician for an investigational drug, biological product, or
23 device.

24 ~~d.~~ (4) Has given written informed consent for the use of
25 the investigational drug, biological product, or device.

26 ~~e.~~ (5) Has documentation from the individual's physician
27 that the individual meets the requirements of this subsection
28 paragraph "a".

29 b. (1) Has a life-threatening or severely debilitating
30 illness, attested to by the patient's treating physician.

31 (2) Has considered all other treatment options currently
32 approved by the United States food and drug administration.

33 (3) Has received a recommendation from the individual's
34 physician for an individualized investigational treatment,
35 based on an analysis of the patient's genomic sequence, human

1 chromosomes, deoxyribonucleic acid, ribonucleic acid, genes,
2 gene products such as enzymes and other types of proteins, or
3 metabolites.

4 (4) Has given written informed consent for the use of the
5 individualized investigational treatment.

6 (5) Has documentation from the individual's physician that
7 the individual meets the requirements of this paragraph "b".

8 3. "Individualized investigational treatment" means a drug,
9 biological product, or device that is unique to, and produced
10 exclusively for use by, an individual patient, based on the
11 individual patient's own genetic profile. "Individualized
12 investigational treatment" includes but is not limited to
13 individualized gene therapy, antisense oligonucleotides, and
14 individualized neoantigen vaccines.

15 ~~2.~~ 4. "Investigational drug, biological product, or
16 device" means a drug, biological product, or device that has
17 successfully completed phase 1 of a United States food and drug
18 administration-approved clinical trial but has not yet been
19 approved for general use by the United States food and drug
20 administration and remains under investigation in a United
21 States food and drug administration-approved clinical trial.

22 ~~3.~~ 5. "Terminal illness" means a progressive disease
23 or medical or surgical condition that entails significant
24 functional impairment, that is not considered by a treating
25 physician to be reversible even with administration of
26 treatments approved by the United States food and drug
27 administration, and that, without life-sustaining procedures,
28 will result in death.

29 ~~4.~~ 6. "Written informed consent" means a written document
30 that is signed by the patient, a parent of a minor patient, or a
31 legal guardian or other legal representative of the patient and
32 attested to by the patient's treating physician and a witness
33 and that includes, at a minimum, all of the following:

34 a. If the patient is an eligible patient as specified in
35 subsection 2, paragraph "a":

1 (1) An explanation of the products and treatments approved
2 by the United States food and drug administration for the
3 disease or condition from which the patient suffers.

4 ~~b.~~ (2) An attestation that the patient concurs with the
5 patient's treating physician in believing that all products
6 and treatments approved by the United States food and drug
7 administration are unlikely to prolong the patient's life.

8 ~~c.~~ (3) Clear identification of the specific proposed
9 investigational drug, biological product, or device that the
10 patient is seeking to use.

11 ~~d.~~ (4) A description of the best and worst potential
12 outcomes of using the investigational drug, biological product,
13 or device and a realistic description of the most likely
14 outcome. The description shall include the possibility that
15 new, unanticipated, different, or worse symptoms might result
16 and that death could be hastened by use of the proposed
17 investigational drug, biological product, or device. The
18 description shall be based on the treating physician's
19 knowledge of the proposed investigational drug, biological
20 product, or device in conjunction with an awareness of the
21 patient's condition.

22 ~~e.~~ (5) A statement that the patient's health plan or
23 third-party administrator and provider are not obligated to
24 pay for any care or treatments consequent to the use of the
25 investigational drug, biological product, or device, unless
26 they are specifically required to do so by law or contract.

27 ~~f.~~ (6) A statement that the patient's eligibility for
28 hospice care may be withdrawn if the patient begins curative
29 treatment with the investigational drug, biological product,
30 or device and that hospice care may be reinstated if this
31 treatment ends and the patient meets hospice eligibility
32 requirements.

33 ~~g.~~ (7) A statement that the patient understands that the
34 patient is liable for all expenses consequent to the use of
35 the investigational drug, biological product, or device and

1 that this liability extends to the patient's estate unless
2 a contract between the patient and the manufacturer of the
3 investigational drug, biological product, or device states
4 otherwise.

5 b. If the patient is an eligible patient as specified in
6 subsection 2, paragraph "b":

7 (1) An explanation of the currently approved products and
8 treatments for the disease or condition from which the patient
9 suffers.

10 (2) An attestation that the patient concurs with the
11 patient's treating physician in believing that all currently
12 approved and conventionally recognized products and treatments
13 are unlikely to prolong the patient's life.

14 (3) Clear identification of the specific proposed
15 individualized investigational treatment that the patient is
16 seeking to use.

17 (4) A description of the best and worst potential outcomes
18 of using the individualized investigational treatment
19 and a realistic description of the most likely outcome.
20 The description shall include the possibility that new,
21 unanticipated, different, or worse symptoms might result
22 and that death could be hastened by use of the proposed
23 individualized investigational treatment. The description
24 shall be based on the treating physician's knowledge of
25 the proposed individualized investigational treatment in
26 conjunction with an awareness of the patient's condition.

27 (5) A statement that the patient's health plan or
28 third-party administrator and provider are not obligated to
29 pay for any care or treatments consequent to the use of the
30 individualized investigational treatment, unless they are
31 specifically required to do so by law or contract.

32 (6) A statement that the patient's eligibility for hospice
33 care may be withdrawn if the patient begins curative treatment
34 with the individualized investigational treatment and that
35 hospice care may be reinstated if this treatment ends and the

1 patient meets hospice eligibility requirements.

2 (7) A statement that the patient understands that the
3 patient is liable for all expenses consequent to the use of
4 the individualized investigational treatment and that this
5 liability extends to the patient's estate, unless a contract
6 between the patient and the manufacturer of the individualized
7 investigational treatment states otherwise.

8 Sec. 2. Section 144E.3, Code 2025, is amended to read as
9 follows:

10 **144E.3 Manufacturer and eligible facility rights.**

11 1. A manufacturer of an investigational drug, biological
12 product, or device or a manufacturer operating within, and in
13 compliance with all requirements applicable to, an eligible
14 facility may make available, and an eligible patient, as
15 applicable under section 144E.1, subsection 2, paragraph "a"
16 or "b", may request from a manufacturer of an investigational
17 drug, biological product, or device, or a manufacturer
18 operating within, and in compliance with all requirements
19 applicable to, an eligible facility, the manufacturer's
20 investigational drug, biological product, or device, or the
21 manufacturer's individualized investigational treatment under
22 this chapter. This chapter does not require a manufacturer
23 of an investigational drug, biological product, or device, or
24 of an individualized investigational treatment to provide or
25 otherwise make available the investigational drug, biological
26 product, or device, or the individualized investigational
27 treatment to an eligible patient.

28 2. A An eligible facility, or a manufacturer described
29 in subsection 1, that is in compliance with all applicable
30 requirements, may do any of the following:

31 a. Provide an investigational drug, biological product,
32 or device, or an individualized investigational treatment
33 to an eligible patient, as applicable under section 144E.1,
34 subsection 2, paragraph "a" or "b", without receiving
35 compensation.

1 **b.** Require an eligible patient, as applicable under section
2 144E.1, subsection 2, paragraph "a" or "b", to pay the costs
3 of, or the costs associated with, the manufacture of the
4 investigational drug, biological product, or device, or the
5 individualized investigational treatment.

6 Sec. 3. Section 144E.4, Code 2025, is amended to read as
7 follows:

8 **144E.4 Treatment coverage.**

9 1. **This chapter** does not expand the coverage required of an
10 insurer under **Title XIII, subtitle 1.**

11 2. A health plan, third-party administrator, or
12 governmental agency may, but is not required to, provide
13 coverage for the cost of an investigational drug, biological
14 product, or device, ~~or the cost of an individualized~~
15 investigational treatment, the cost of services related to the
16 use of an investigational drug, biological product, or device,
17 or the cost of services related to the use of an individualized
18 investigational treatment under this chapter.

19 3. **This chapter** does not require any governmental agency
20 to pay costs associated with the use, care, or treatment of a
21 patient with an investigational drug, biological product, or
22 device, or an individualized investigational treatment.

23 4. **This chapter** does not require a hospital licensed under
24 chapter 135B or other health care facility to provide new or
25 additional services, unless approved by the hospital or other
26 health care facility.

27 Sec. 4. Section 144E.5, Code 2025, is amended to read as
28 follows:

29 **144E.5 Heirs not liable for treatment debts.**

30 If a patient dies while being treated ~~by~~ with an
31 investigational drug, biological product, or device, or
32 an individualized investigational treatment, the patient's
33 heirs are not liable for any outstanding debt related to the
34 treatment or lack of insurance due to the treatment, ~~unless~~
35 otherwise required by law.

1 Sec. 5. Section 144E.6, Code 2025, is amended to read as
2 follows:

3 **144E.6 Provider recourse.**

4 1. To the extent consistent with state law, the board of
5 medicine created under [chapter 147](#) shall not revoke, fail
6 to renew, suspend, or take any action against a physician's
7 license based solely on the physician's recommendations to
8 an eligible patient regarding access to or treatment with an
9 investigational drug, biological product, or device, or an
10 individualized investigational treatment.

11 2. To the extent consistent with federal law, an entity
12 responsible for Medicare certification shall not take action
13 against a physician's Medicare certification based solely on
14 the physician's recommendation that a patient have access to
15 an investigational drug, biological product, or device, or an
16 individualized investigational treatment.

17 Sec. 6. Section 144E.7, Code 2025, is amended to read as
18 follows:

19 **144E.7 State interference.**

20 An official, employee, or agent of this state shall not
21 block or attempt to block an eligible patient's access to an
22 investigational drug, biological product, or device, or to an
23 individualized investigational treatment. Counseling, advice,
24 or a recommendation consistent with medical standards of care
25 from a licensed physician is not a violation of [this section](#).

26 Sec. 7. Section 144E.8, Code 2025, is amended to read as
27 follows:

28 **144E.8 Private cause of action.**

29 1. [This chapter](#) shall not create a private cause of action
30 against a manufacturer of an investigational drug, biological
31 product, or device, or an individualized investigational
32 treatment, against an eligible facility, or against any other
33 person or entity involved in the care of an eligible patient
34 using the investigational drug, biological product, or device,
35 or the individualized investigational treatment for any harm

1 done to the eligible patient resulting from the investigational
2 drug, biological product, or device, or the individualized
3 investigational treatment, if the manufacturer, eligible
4 facility, or other person or entity is complying in good faith
5 with the terms of [this chapter](#) and has exercised reasonable
6 care.

7 2. [This chapter](#) shall not affect any mandatory health care
8 coverage for participation in clinical trials under Title XIII,
9 subtitle 1.>

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